



Administration of Justice Act 1973

1973 CHAPTER 15

An Act to amend the law relating to justices of the peace and to make further provision with respect to the administration of justice and matters connected therewith.
[18th April 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

JUSTICES OF THE PEACE

1.—(1) Subject to the following subsections, there shall in England and Wales be a commission of the peace for the following areas (in this Act referred to as “commission areas”) and no others, that is to say any county, any London commission area and the City of London; and the commission for any commission area shall be a commission under the Great Seal addressed generally, and not by name, to all such persons as may from time to time hold office as justices of the peace for the commission area.

Appointment of justices of the peace, and supplemental list.

(2) Justices of the peace for any commission area, other than stipendiary magistrates, shall be appointed on behalf and in the name of Her Majesty by instrument under the hand of the Lord Chancellor, and a justice so appointed may be removed from office in like manner; and in any commission area other than the City of London such one of the justices as may be designated by the Lord Chancellor shall be keeper of the rolls.

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(3) There shall be transmitted to the keeper of the rolls for each commission area, and be enrolled in the records of the justices for that area, a copy of any instrument appointing or removing a justice of the peace in that area in accordance with this section; and the keeper of the rolls shall be notified in such manner as the Lord Chancellor may direct of any resignation or death of a justice so appointed, and shall cause to be kept and from time to time rectified a record of those for the time being holding office by virtue of any such appointment.

(4) There shall be kept in the office of the Clerk of the Crown in Chancery—

(a) a record of all persons for the time being holding office as justice of the peace by virtue of appointments made in accordance with this section, together with the instruments of appointment or removal; and

(b) a supplemental list for England and Wales as provided for by subsection (5) below.

1949 c. 101.

(5) The supplemental list for England and Wales under this Act shall be in lieu of the supplemental lists provided for by section 4 of the Justices of the Peace Act 1949, but shall include the like names and be of the like effect as those lists, except that—

(a) where a person ceases to be a justice for any commission area and is thereupon appointed a justice for another area the Lord Chancellor may direct that his name shall be entered in the supplemental list; and

(b) the entry of a person's name in the supplemental list shall not preclude him, if so authorised by the Lord Chancellor, from acting as a judge of the Crown Court so long as he has not attained the age of 72 years.

(6) Subsections (1) to (3) above shall be without prejudice to the position of the Lord Mayor and aldermen as justices for the City of London by virtue of the charters of the City, but so that any of them may be excluded by the Lord Chancellor from the exercise of his functions as a justice; and in the application of subsection (3) to the City a reference to the Lord Mayor shall be substituted for any reference to the keeper of the rolls.

(7) In relation to the counties of Greater Manchester, Merseyside and Lancashire subsections (1) to (3) above shall have effect with the substitution for references to the Lord Chancellor of references to the Chancellor of the Duchy of Lancaster; and in subsection (5) the references to the Lord Chancellor shall have effect as references to the Chancellor of the Duchy of Lancaster so far as relates to the entry in or removal from the supplemental list of the name of a person who is a justice of the peace only for any of those counties.

(8) For the purposes of this section the Isles of Scilly shall form part of the county of Cornwall. PART I

(9) There shall cease to have effect—

(a) section 1 of the Metropolitan Police Act 1829 in so far as it regulates the appointment or removal of the Commissioner of Police of the Metropolis ; and

(b) so much of section 2 of the Metropolitan Police Act 1856 as provides for the Assistant Commissioners of Police of the Metropolis to be justices of the peace ; and the Commissioner of Police shall be appointed in like manner as Assistant Commissioners are under the said section 2 to be appointed.

2.—(1) It shall be lawful for Her Majesty to appoint a barrister or solicitor of not less than seven years standing to be, during Her Majesty's pleasure, a whole-time stipendiary magistrate in any commission area or areas outside the Inner London area and the City of London, and to appoint more than one such magistrate in the same area or areas ; and a person so appointed to be a magistrate in any commission area shall by virtue of his office be a justice of the peace for that area. Stipendiary magistrates.

(2) Any appointment of a stipendiary magistrate under this section shall be of a person recommended to Her Majesty by the Lord Chancellor, and a stipendiary magistrate appointed under this section shall not be removed from office except on the Lord Chancellor's recommendation.

(3) A stipendiary magistrate so appointed in any commission area shall sit at such court houses in the area, on such days and at such times as may be determined by or in accordance with directions given by the Lord Chancellor from time to time.

(4) For purposes of pension and of any derivative benefit under the Administration of Justice (Pensions) Act 1950 service as a stipendiary magistrate under this section shall be treated as service as a metropolitan stipendiary magistrate. 1950 c. 11 (14 & 15 Geo. 6.).

(5) Where a stipendiary magistrate would, apart from this Act, be required by section 2(2) of the Justices of the Peace Act 1968 to vacate his office at the end of the completed year of service in the course of which he attains the age of 70, but the Lord Chancellor considers it desirable in the public interest to retain him in office after that time, the Lord Chancellor may from time to time authorise him to continue in office up to such age not exceeding 72 as the Lord Chancellor thinks fit.

(6) So much of section 10(1) of the Administration of Justice Act 1964 as limits the number of metropolitan stipendiary magistrates to forty shall cease to have effect, but—

(a) the number of metropolitan stipendiary magistrates shall not at any time exceed sixty or such larger number as

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Her Majesty may from time to time by Order in Council specify ; and

- (b) the number of stipendiary magistrates appointed under this section shall not at any time exceed forty or such larger number as may be so specified ;

and Her Majesty shall not be recommended to make an Order in Council under this subsection unless a draft of the Order has been laid before Parliament and approved by resolution of each House.

1956 c. 34.

(7) Section 16(2) of the Criminal Justice Administration Act 1956 and Schedule 2 to that Act shall cease to have effect, but where it appears to the Lord Chancellor that it is expedient so to do in order to avoid delays in the administration of justice in any commission area in which a stipendiary magistrate may be appointed under this section, he may authorise any person qualified to be so appointed to act as a stipendiary magistrate in that area during such period (not exceeding three months at one time) as the Lord Chancellor thinks fit, and may require so to act any stipendiary magistrate appointed under this section in another commission area ; and while so acting in any area under this subsection, a person shall have the same jurisdiction, powers and duties as if he had been appointed stipendiary magistrate in that area, and were a justice of the peace for that area.

The Lord Chancellor may, out of moneys provided by Parliament, pay to any person authorised to act under this subsection, not being a stipendiary magistrate, such remuneration as he may, with the approval of the Minister for the Civil Service, determine.

Courses of instruction for justices of the peace.

1949 c. 101.
1964 c. 42.

3.—(1) There may be paid out of moneys provided by Parliament any expenses incurred by the Lord Chancellor in providing courses of instruction for justices of the peace ; and a justice of the peace following a course of instruction so provided shall be entitled to the like allowances as are payable to justices following a course provided under section 17 of the Justices of the Peace Act 1949 or section 16(2) of the Administration of Justice Act 1964, and the enactments relating to allowances so payable shall apply accordingly.

(2) If courses of instruction are not provided for justices of the peace of any area as required by section 17 of the Justices of the Peace Act 1949 or section 16(2) of the Administration of Justice Act 1964, then any expenses incurred by the Lord Chancellor in providing courses of instruction to make good the default shall be recoverable by him from the magistrates' courts committee or committee of magistrates in default, and any sums received by him under this subsection shall be paid into the Consolidated Fund.

4. In section 33 of the Solicitors Act 1957 (which precludes a solicitor from acting in connection with proceedings before justices for any area if he or his partner is a justice for that area) there shall be inserted after subsection (1) the following subsection:—

“(1A) Where the area for which a solicitor is a justice of the peace is divided into petty sessional divisions, his being a justice for the area shall not subject him or any partner of his to any disqualification under this section in relation to proceedings before justices acting for a petty sessional division for which he does not ordinarily act.”

5. The provisions of Parts I to III of Schedule 1 to this Act, which reproduces, with the modifications required by the foregoing sections,—

- (a) in Part I the effect of the enactments relating to the retirement and personal pension of stipendiary magistrates; and
- (b) in Part II the effect of the enactments and rules relating to supplemental lists kept by virtue of section 4 of the Justices of the Peace Act 1949; and
- (c) in Part III the effect of section 8 of the Justices of the Peace Act 1949 and later enactments with respect to the allowances payable to justices of the peace;

shall have effect in place of the enactments and rules referred to in paragraphs (a) to (c) above; and any such enactment or instrument as is referred to in Part IV of that Schedule shall have effect subject to the amendments there provided for, being amendments consequential on the foregoing sections of this Act or on Parts I to III of that Schedule.

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MISCELLANEOUS

6.—(1) In the enactments mentioned in Schedule 2 to this Act (which deal with the jurisdiction of county courts in actions relating to land, and connected matters) there shall be made the amendments required by that Schedule, in lieu of any amendment of the same words made by previous enactments; and the county court limit under any of the enactments amended by an entry in Part I of the Schedule shall be the amount specified in column 3 in that entry or such greater amount as Her Majesty may from time to time by Order in Council direct.

(2) No recommendation shall be made to Her Majesty in Council to make an Order under this section unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

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1959 c. 22.

(3) No provision of this Act or of any Order in Council under this section shall affect the operation of section 49 of the County Courts Act 1959 or that of section 109(2)(a), (b) or (c) of that Act in the case of actions commenced before the coming into force of that provision.

Extension of power to refer proceedings or questions arising in proceedings in county courts to arbitration or for inquiry and report.

7.—(1) In section 92 of the County Courts Act 1959 (which enables the judge, but not the registrar, of the court to refer proceedings to arbitration with the consent of the parties) there shall be made the following amendments—

(a) for subsection (1) there shall be substituted the following—

“(1) A county court may, in such cases as may be prescribed, order any proceedings to be referred to arbitration (whether with or without other matters within the jurisdiction of the court in dispute between the parties) to such person or persons (including the judge or registrar) and in such manner and on such terms as the court thinks just and reasonable.”; and

(b) in subsection (2), for the word “judge” there shall be substituted the word “court”.

(2) In section 93 of that Act (which enables the judge to refer proceedings or questions arising in proceedings for inquiry and report) there shall be made the following amendments—

(a) in subsection (1), at the end, there shall be inserted the words “and, in such cases as may be prescribed by and subject to county court rules, the registrar may refer to a referee for inquiry and report any question arising in any proceedings.”; and

(b) in subsection (2), after the word “judge”, there shall be inserted the words “or, as the case may be, the registrar”.

Extension of powers of court in action by mortgagee of dwelling-house.

1970 c. 31.

8.—(1) Where by a mortgage of land which consists of or includes a dwelling-house, or by any agreement between the mortgagee under such a mortgage and the mortgagor, the mortgagor is entitled or is to be permitted to pay the principal sum secured by instalments or otherwise to defer payment of it in whole or in part, but provision is also made for earlier payment in the event of any default by the mortgagor or of a demand by the mortgagee or otherwise, then for purposes of section 36 of the Administration of Justice Act 1970 (under which a court has power to delay giving a mortgagee possession of the mortgaged property so as to allow the mortgagor a reasonable time to pay any sums due under the mortgage) a court may treat as due under the mortgage on account of the principal sum secured and of interest on it only such amounts

as the mortgagor would have expected to be required to pay if there had been no such provision for earlier payment. PART II

(2) A court shall not exercise by virtue of subsection (1) above the powers conferred by section 36 of the Administration of Justice Act 1970 unless it appears to the court not only that the mortgagor is likely to be able within a reasonable period to pay any amounts regarded (in accordance with subsection (1) above) as due on account of the principal sum secured, together with the interest on those amounts, but also that he is likely to be able by the end of that period to pay any further amounts that he would have expected to be required to pay by then on account of that sum and of interest on it if there had been no such provision as is referred to in subsection (1) above for earlier payment. 1970 c. 31.

(3) Where subsection (1) above would apply to an action in which a mortgagee only claimed possession of the mortgaged property, and the mortgagee brings an action for foreclosure (with or without also claiming possession of the property), then section 36 of the Administration of Justice Act 1970 together with subsections (1) and (2) above shall apply as they would apply if it were an action in which the mortgagee only claimed possession of the mortgaged property, except that—

(a) section 36(2)(b) shall apply only in relation to any claim for possession ; and

(b) section 36(5) shall not apply.

(4) For purposes of this section the expressions “dwelling-house”, “mortgage”, “mortgagee” and “mortgagor” shall be construed in the same way as for the purposes of Part IV of the Administration of Justice Act 1970.

(5) This section shall have effect in relation to an action begun before the date on which this section comes into force if before that date judgment has not been given, nor an order made, in that action for delivery of possession of the mortgaged property and, where it is a question of subsection (3) above, an order *nisi* for foreclosure has not been made in that action.

(6) In the application of this section to Northern Ireland, subsection (3) shall be omitted.

9.—(1) Subject to the following subsections, there shall be paid to— Judicial salaries.

(a) Lords of Appeal in Ordinary ;

(b) judges of the Supreme Court in England and Wales other than the Lord Chancellor ;

(c) judges of the Court of Session ;

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(d) judges of the Supreme Court in Northern Ireland ;

(e) metropolitan stipendiary magistrates ;

(f) stipendiary magistrates appointed under this Act ;

such salaries as may be determined, with the consent of the Minister for the Civil Service, by the Lord Chancellor or, in the case of judges of the Court of Session, by the Secretary of State.

(2) Until otherwise determined under this section, there shall be paid to the holders of judicial office mentioned in paragraphs (a) to (e) of subsection (1) above the same salaries as at the coming into force of this section.

(3) Any salary payable under this section may be increased, but not reduced, by a determination or further determination under this section.

(4) The salary payable to any holder of judicial office under this section shall in each case be abated by the amount of any pension payable to him in respect of any public office in the United Kingdom or elsewhere to which he had previously been appointed or elected ; but any abatement under this subsection shall be disregarded for the purposes of computing the pension payable to him in respect of that judicial office and any derivative benefit within the meaning of the Administration of Justice (Pensions) Act 1950 which depends upon eligibility for such a pension.

1950 c. 11 (14
& 15 Geo. 6.).

(5) Salaries payable under this section shall be charged on and paid out of the Consolidated Fund of the United Kingdom.

Judicial
pensions
(increase of
widow's and
children's
pensions).

1950 c. 11 (14
& 15 Geo. 6.).

10.—(1) The annual amount of the widow's pension that may be granted under or by virtue of the Administration of Justice (Pensions) Act 1950 wholly or partly in respect of relevant service after the passing of this Act, and the annual amount of the children's pension that may be so granted, shall be increased in accordance with this section ; and where the widow's pension or children's pension (if any) that may be granted in respect of a person's relevant service is so increased, there shall be made towards the cost of the liability therefor such contributions (in lieu of or in addition to that required by section 8 of the Act of 1950) as may be prescribed, in the form either of a reduction or further reduction of the lump sum pension benefit payable in respect of that service or of deductions from the salary so payable or partly in one of those forms and partly in the other.

(2) In the case of pensions attributable wholly to relevant service after the passing of this Act,—

(a) the annual amount of a widow's pension may be one-half of the annual amount of the personal pension of the deceased ; and

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(b) subject to section 7(4) of the Act of 1950 (which makes provision for the case of a widow remarrying), the annual amount of a children's pension, while there is only one person for whose benefit it can enure, may amount—

(i) where the deceased was a man who left a widow and she is still alive, to one-quarter of the annual amount of the personal pension ; and

(ii) in any other case, to one-third of the annual amount of the personal pension ;

and while there are two or more persons for whose benefit it can enure, may amount to twice the figure given by whichever is applicable of subparagraphs (i) and (ii) above.

In section 7(4) of the Act of 1950 the reference to subsection (2) of that section shall include paragraph (b)(ii) of this subsection.

(3) Subject to subsection (4) below, in the case of pensions payable partly in respect of relevant service after the passing of this Act but not attributable wholly to that service, the annual value of the widow's pension or children's pension that may be granted shall be determined by reference to the proportions which the relevant service before and after that time bear to the whole of the relevant service, and shall be the amount obtained by adding—

(a) the part proportionate to the service before that time of the annual amount of the pension that might have been granted if this section had not been passed ; and

(b) the part proportionate to the service after that time of the annual amount of the pension that might have been granted if this section had always had effect.

(4) In relation to persons serving at the passing of this Act provision may be made by regulations whereby, subject to any prescribed conditions, an election may be made by or with respect to a person—

(a) that subsection (2) above shall apply to him as if the whole of his relevant service were service after the passing of this Act, and subsection (3) shall not apply ;

(b) that subsections (1) to (3) above shall not apply to him, and the Act of 1950 shall apply as if this section had not been passed ;

(c) in the case of a person who elected under section 11(1) or (2) of the Act of 1950 for his eligibility for pension not to satisfy the conditions for the grant of a widow's or children's pension, that the election under that section shall be revoked.

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(5) Where a person's relevant service is partly before and partly after the passing of this Act, then for the purposes of this section any widow's or children's pension payable in respect of that service is to be regarded as attributable wholly to the service after that time if the service before that time does not add to the annual rate of the personal pension, and for the purposes of subsection (3) there shall be left out of account so much (if any) of the service before that time as does not add to the annual amount of the personal pension.

(6) Regulations made for purposes of this section may make provision for consequential or incidental matters, including provision excluding or modifying the operation of any enactment passed before this Act; and in particular any regulations providing for contributions by deduction from salary may make consequential provision as to sections 10 and 11 of the Act of 1950 and any other enactment referring or relating to lump sums payable under that Act.

(7) Regulations for purposes of this section may be made, with the concurrence of the Minister for the Civil Service, by the Lord Chancellor or, in relation to pensions for service in offices existing only in Scotland, by the Secretary of State; and the power to make regulations for purposes of this section shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(8) The foregoing provisions of this section shall have effect in relation to the enactments mentioned in Schedule 3 to this Act as they have effect in relation to the Act of 1950, but subject to the adaptations provided for by that Schedule; and provision corresponding to that which is made by subsections (1) and (3) above, or which may be made by regulations under this section for purposes of those subsections may, in relation to the pension benefits of any resident magistrate or county court registrar included in Schedule 5 to the Superannuation (Northern Ireland) Order 1972 (persons remaining subject to the Superannuation Acts (Northern Ireland) 1967 and 1969), be made by order of the Ministry of Finance for Northern Ireland.

1920 c. 67.

For the purposes of section 6 of the Government of Ireland Act 1920 this subsection shall be deemed to have been passed before the appointed day within the meaning of that section.

1950 c. 11 (14
& 15 Geo. 6.).

(9) In this section—

(a) "the Act of 1950" means the Administration of Justice (Pensions) Act 1950;

(b) "prescribed" means prescribed by regulations made for purposes of this section.

11.—(1) The provisions of Schedule 4 to this Act (which reproduce for certain judicial pensions the effect of existing enactments, except in providing for pensions to be payable without a grant by Letters Patent and in omitting any express provision as to time of payment) shall, with the savings and consequential amendments there contained, have effect in place of those enactments. PART II
Pensions of
higher
judiciary.

(2) Except as provided by Schedule 4 to this Act, the provisions of that Schedule shall apply in relation to persons who retired or died before this section comes into force.

12.—(1) Where the Lord Chancellor is satisfied by means of a medical certificate that a person holding office as Lord of Appeal in Ordinary, as judge of the Supreme Court in England and Wales or as judge of the Supreme Court in Northern Ireland is disabled by permanent infirmity from the performance of the duties of his office, but is for the time being incapacitated from resigning it, then subject to subsections (2) to (4) below the Lord Chancellor may by instrument under his hand declare that person's office to have been vacated, and the instrument shall have the like effect for all purposes as if that person had on the date of the instrument resigned his office. Retirement of
higher
judiciary in
event of
incapacity.

(2) A declaration under this section with respect to a Lord of Appeal in Ordinary shall be of no effect unless it is made with the concurrence of the senior of the Lords of Appeal or, if made with respect to him, with that of the next senior of them.

(3) A declaration under this section with respect to a judge of the Supreme Court in England and Wales shall be of no effect unless it is made—

- (a) in the case of any of the Lord Chief Justice, the Master of the Rolls, the President of the Family Division and the Vice-Chancellor, with the concurrence of two others of them ;
- (b) in the case of a Lord Justice of Appeal, with the concurrence of the Master of the Rolls ;
- (c) in the case of a puisne judge of the Queen's Bench Division, with the concurrence of the Lord Chief Justice ;
- (d) in the case of a puisne judge of the Chancery Division other than the Vice-Chancellor, with the concurrence of the Vice-Chancellor ;
- (e) in the case of a puisne judge of the Family Division, with the concurrence of the President of the Family Division.

(4) A declaration under this section with respect to a judge of the Supreme Court of Northern Ireland shall be of no effect unless it is made with the concurrence of the Lord Chief Justice of Northern Ireland or, if made with respect to him, with that of the senior Lord Justice of Appeal.

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**Pension etc.
of president of
pensions
appeal
tribunals.
1943 c. 39.**

13.—(1) In the case of any person appointed after the coming into force of this section as president of the pension appeal tribunals established under the Pensions Appeal Tribunals Act 1943—

(a) the Lord Chancellor may pay such pension, allowances or gratuity to or in respect of him on his retirement or death, or make such payments towards the provision of such a pension, allowance or gratuity, as the Lord Chancellor with the approval of the Minister for the Civil Service may determine; and

(b) if, on his ceasing to hold office as president of the pensions appeal tribunals, it appears to the Lord Chancellor that there are special circumstances which make it right that he should receive compensation, the Lord Chancellor may, with the approval of the Minister for the Civil Service, pay to him a sum of such amount as the Lord Chancellor may, with the like approval, determine.

(2) The expenses of the Lord Chancellor under this section shall be defrayed out of moneys provided by Parliament.

**Pensions of
resident
magistrates
in Northern
Ireland.
1960 c. 2
(N.I.).**

14.—(1) In the Resident Magistrates' Pensions Act (Northern Ireland) 1960 the definition of "retiring salary" in section 22(1) shall be amended by omitting the word "average" and by substituting for the words "during the three years immediately preceding the date of his retirement" the words "immediately before his retirement".

(2) This section shall not affect any pension or other benefit payable to or in respect of a person who retired or died before the coming into force of this section.

1920 c. 67.

(3) For the purposes of section 6 of the Government of Ireland Act 1920 this section shall be deemed to have been passed before the appointed day within the meaning of that section.

**Qualification
for
appointment
as deputy
Circuit judge.
1971 c. 23.**

15. For section 24(2)(a) of the Courts Acts 1971 (under which a person is qualified for appointment as deputy Circuit judge if he is a barrister of at least ten years' standing or a Recorder who has held that office for at least five years) there shall be substituted—

"(a) any barrister or solicitor of at least ten years' standing".

**Appointment
of deputy
district
registrars of
High Court
and deputy
county court
registrars.**

16.—(1) If it appears to the Lord Chancellor that it is expedient as a temporary measure to make an appointment under this subsection in order to facilitate the disposal of business in the High Court, he may appoint a person to be a deputy district registrar in any district registry of the High Court during such period or on such occasions as the Lord Chancellor thinks fit;

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and a deputy district registrar, while acting under his appointment, shall have the same powers as if he were the district registrar.

(2) If it appears to the Lord Chancellor that it is expedient as a temporary measure to make an appointment under this subsection in order to facilitate the disposal of business in county courts, he may appoint a person to be deputy county court registrar for any county court district during such period or on such occasions as the Lord Chancellor thinks fit; and a deputy county court registrar, while acting under his appointment, shall have the same powers and be subject to the same liabilities as if he were the registrar.

(3) Any person being a solicitor of not less than seven years' standing shall be qualified for appointment under this section as deputy district registrar or deputy county court registrar.

1959 c. 22.

(4) Section 29(1) of the County Courts Act 1959 (which provides that no officer of a county court shall, either by himself or his partner be directly or indirectly engaged as a solicitor or agent for any party in any proceedings in that court) shall not apply to a deputy county court registrar appointed under this section; but a deputy district registrar or deputy county court registrar so appointed shall not act as such in relation to any proceedings in which he is, either by himself or his partner, directly or indirectly engaged as a solicitor or agent for any party.

(5) Notwithstanding the expiry of any period for which a person is appointed under this section to be deputy district registrar or deputy county court registrar, he may act as such for the purpose of continuing to deal with, giving judgment in, or dealing with any ancillary matter relating to, any case with which he may have been concerned during the period of his appointment, and for that purpose shall be treated as acting under that appointment.

(6) The Lord Chancellor may, out of moneys provided by Parliament, pay to any person appointed deputy district registrar or deputy county court registrar under this section such remuneration and allowances as he may, with the approval of the Minister for the Civil Service, determine.

(7) After the coming into force of this section no further appointment shall be made of provisional district registrars or deputy district registrars under section 84 of the Supreme Court 1925 c. 49. of Judicature (Consolidation) Act 1925 or section 11 of the Administration of Justice Act 1956, or of deputy county court registrars under section 27 of the County Courts Act 1959; and on the coming into force of this section any person then holding office as deputy district registrar or deputy county court registrar

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shall vacate that office, but so that subsections (4), (5) and (6) above shall thereafter apply to him as if he had been appointed under this section for a period then expiring.

Payment of
interpreters in
criminal cases
(England
and Wales).

17.—(1) Where in any criminal proceedings an interpreter is required because of a defendant's lack of English, the expenses properly incurred on his employment shall be ordered by the court to be paid out of central funds; and—

- (a) where there is laid before a justice of the peace for any area an information charging with an offence a person who because of his lack of English would require an interpreter on his trial, but the information is not proceeded with, then, if he has incurred expenses on the employment of an interpreter for the proceedings on the information, he may apply to a magistrates' court for that area and the court shall order the payment out of central funds of the expenses properly so incurred by him; and
- (b) where such a person is committed for trial but is not ultimately tried, then if he has incurred expenses on the employment of an interpreter for the proceedings in the Crown Court, he may apply to the Crown Court and the court shall order the payment out of central funds of the expenses properly so incurred by him.

1973 c. 14.

(2) In this section "criminal proceedings" means any proceedings in which a court has power under the Costs in Criminal Cases Act 1973 to make an order for payment of costs out of central funds or would have power to do so if any reference in that Act to an indictable offence were a reference to any offence; and sections 13 to 17 of that Act (which relate to the procedure for implementing orders under the Act and other supplemental matters) shall apply in relation to this section as they apply in relation to that Act, except that—

- (a) in section 15 (costs ordered by magistrates' court to be paid out of central funds) subsection (1) shall apply as if the reference in paragraph (a) to an indictable offence included any offence, and shall also apply where an order is made by a magistrates' court under subsection (1)(a) above; and
- (b) section 16(2) (payment of costs ordered to be paid out of central funds and by accused or prosecutor) shall not apply so as to require a defendant to reimburse any costs paid out of central funds by virtue of this section.

(3) In this section "court" includes the House of Lords, and "defendant" means the person (whether convicted or not) who is alleged to be guilty of an offence.

18.—(1) In the Costs in Criminal Cases Act (Northern Ireland) 1968, after section 5 thereof, there shall be inserted the following section—

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Payment of
interpreters in
criminal cases
(Northern
Ireland).
1968 c. 10
(N.I.).

**“Fees of
required
interpreter.—**

5A. Notwithstanding anything to the contrary contained in this Act, where in any criminal proceedings an interpreter is required because of a defendant's lack of English, the expenses properly incurred on his employment shall, in accordance with rules made pursuant to section 7, be defrayed by the Ministry.”.

- (2) Where in any of the following proceedings, that is to say,—
- (a) any proceedings on an appeal to the Court of Criminal Appeal in Northern Ireland, or preliminary or incidental to such an appeal ;
 - (b) any proceedings before a divisional court of the Queen's Bench Division of the High Court of Justice in Northern Ireland in a criminal cause or matter ;
 - (c) any proceedings on an appeal to the House of Lords from a decision in proceedings within (a) or (b) above or an application for leave to appeal from such a decision ;

an interpreter is required because of a defendant's lack of English, the expenses properly incurred on his employment shall be defrayed by the Ministry of Home Affairs for Northern Ireland, up to an amount allowed by the court or (in the case of proceedings in that House) by the House of Lords.

In this subsection “defendant” means the person (whether convicted or not) who is alleged to be guilty of an offence.

(3) For the purposes of section 6 of the Government of Ireland Act 1920 this section shall, so far as it relates to matters within the powers of the Parliament of Northern Ireland, be deemed to have been passed before the appointed day within the meaning of that section.

PART III

SUPPLEMENTARY

19.—(1) The enactments mentioned in Schedule 5 to this Act Repeals. (which in Part I includes certain enactments that are to the extent specified in column 3 superseded or otherwise obsolete or unnecessary, or become so with the amendment provided for by subsection (2) below) are to the extent so specified hereby repealed, but subject—

- (a) in the case of the repeals made by Part I or Part II of Schedule 5 to this Act, to the saving in section 20(6) below ; and
- (b) in the case of the repeals made by Part V of Schedule 5, to the saving in paragraph 4 of Schedule 4.

PART III
1925 c. 49.

(2) In the Supreme Court of Judicature (Consolidation) Act 1925, in section 2(1) as amended by subsequent enactments, for the words "and not less than twenty-five puisne judges of that Court" there shall be substituted the words "and the puisne judges of that Court".

Commence-
ment and
transitional.

20.—(1) The following provisions shall have effect with respect to the coming into force of this Act:—

(a) Part I of this Act and the repeals made by Part II of Schedule 5 shall not come into force until the 1st April 1974 except in so far as provision to the contrary is made by order of the Lord Chancellor made by statutory instrument;

(b) sections 8, 17 and 18 shall not come into force until the expiration of one month beginning with the date this Act is passed; and

(c) section 10 shall come into force on such day as may be appointed by order of the Lord Chancellor and the Secretary of State made by statutory instrument.

(2) Any order of the Lord Chancellor under subsection (1)(a) above may make such consequential or transitional provision as appears to the Lord Chancellor to be necessary by reason of the bringing into force thereby of any provisions before 1st April 1974 (and in particular may make any provision that may be required so that the provisions in force before that date may operate without the provisions not in force, or may operate as regards local government or other matters in conjunction with the law as it is before that date), and may adapt accordingly any reference in this Act to that date or to the beginning of that month.

1972 c. 70.

(3) Notwithstanding subsection (1) above, section 1(1) to (3) of this Act shall apply to any commission of the peace issued or appointment of a justice made before the 1st April 1974 but taking effect only on or after that date; and, subject to section 217 of the Local Government Act 1972,—

(a) any other commission of the peace issued before that date, unless and until superseded by a commission taking effect on or after that date, shall thenceforth have effect as if addressed generally as required by section 1(1) above; and

(b) any person holding office as justice of the peace on that date by virtue of any such commission shall thenceforth hold that office as if appointed in accordance with section 1(2), and shall be included accordingly in the records required by section 1(3) and (4).

1949 c. 101.

(4) Where immediately before the 1st April 1974 a person's name is entered in the supplemental list kept in connection with any commission of the peace by virtue of section 4 of the Justices of the Peace Act 1949, his name shall be treated as

included in the supplemental list for England and Wales under this Act. PART III

(5) Any person who immediately before the 1st April 1974 holds office as stipendiary magistrate for any area under section 29 of the Justices of the Peace Act 1949 shall from the beginning of that month become stipendiary magistrate in any commission area comprising that area or part of it, and shall be treated for all purposes as if he had been appointed stipendiary magistrate in that commission area under section 2 above: 1949 c. 101.

Provided that—

- (a) his salary shall not be less than that payable to him immediately before that date ; and
- (b) contributions to his superannuation allowance under Part I of Schedule 1 to this Act and to any derivative benefit within the meaning of the Administration of Justice (Pensions) Act 1950 shall be paid and borne as if this Act had not been passed and his service as stipendiary magistrate after the beginning of April 1974 had been service as a metropolitan stipendiary magistrate ; and 1950 c. 11 (14 & 15 Geo. 6).
- (c) for the purposes of paragraph 1 of Schedule 1 to this Act the date of his appointment shall be taken to have been that of his appointment to the office held by him immediately before the beginning of that month.
- (6) Nothing in Part I of this Act or in any repeal made by Part I or II of Schedule 5 shall affect—
 - (a) any superannuation or other benefits payable wholly in respect of service ending before 1st April 1974, or the person by whom or manner in which any such benefits are to be paid or borne ; or
 - (b) the division of any commission area into petty sessional divisions as existing at the beginning of that month ; or
 - (c) any regulations in force at the beginning of that month under section 8 of the Justices of the Peace Act 1949 ;
 but any such regulations shall thereafter have effect as if made under Part III of Schedule 1 to this Act.

21.—(1) This Act may be cited as the Administration of Justice Act 1973. Short title
and extent.

(2) The foregoing sections of this Act shall not extend to Scotland or to Northern Ireland except to the following extent, that is to say—

- (a) sections 9 to 12 of this Act, and the repeals made by Parts IV and V of Schedule 5, shall extend to Scotland or to Northern Ireland in so far as they affect the law of Scotland or of Northern Ireland ; and
- (b) sections 8, 14 and 18 of this Act (together with so much of section 20(1) as relates to those sections) shall extend to Northern Ireland.

SCHEDULES

SCHEDULE 1

Sections 5 and
20.

JUSTICES OF THE PEACE (CONSEQUENTIAL RE-ENACTMENTS AND AMENDMENTS)

PART I

RETIREMENT AND SUPERANNUATION OF STIPENDIARY MAGISTRATES

1.—(1) A stipendiary magistrate appointed on or after the 25th October 1968 shall vacate his office at the end of the completed year of service in the course of which he attains the age of 70:

Provided that where the Lord Chancellor considers it desirable in the public interest to retain him in office after that time, the Lord Chancellor may from time to time authorise him to continue in office up to such age not exceeding 72 as the Lord Chancellor thinks fit.

(2) A stipendiary magistrate appointed before the 25th October 1968 shall vacate his office at the end of the completed year of service in the course of which he attains the age of 72:

Provided that where the Lord Chancellor considers it desirable in the public interest to retain him in office after that time, the Lord Chancellor may from time to time authorise him to continue in office up to such age not exceeding 75 as the Lord Chancellor thinks fit.

2.—(1) Subject to the provisions of this paragraph, where a stipendiary magistrate retires (under paragraph 1 above or otherwise) after not less than five years service as stipendiary magistrate, the Minister for the Civil Service on the recommendation of the Lord Chancellor may grant to him a superannuation allowance at an annual rate not exceeding $15/80$ ths of his annual salary, together with an addition for each complete year of his service as stipendiary magistrate after the first 5 years equal to $1/80$ th of the salary or, in the case of a year of service after the first 10 years, to $2/80$ ths of the salary; but the allowance shall in no case exceed one half of the salary.

(2) An allowance under this paragraph shall be calculated on the salary the magistrate is receiving immediately before his retirement.

(3) An allowance shall not be granted under this paragraph to a magistrate who has not attained the age of 65 at the time of his retirement, unless the Lord Chancellor is satisfied by means of a medical certificate that by reason of infirmity of mind or body he is incapable of discharging the duties of his office, and that the incapacity is likely to be permanent.

(4) A person to whom an allowance is granted under this paragraph on his retirement on a medical certificate shall, until he attains the age of 65, be liable to be called upon to fill any public office or situation under the Crown in the United Kingdom for which his previous public services may render him eligible; and if he declines,

SCH. 1

when called upon to do so, to take upon him such office or situation, or declines or neglects to execute the duties thereof satisfactorily, being in a competent state of health, he shall forfeit his right to the allowance which has been granted to him.

(5) The decision of the Minister for the Civil Service on any question which arises as to the application of any provision of this paragraph to any person, or as to the rate of any superannuation allowance under this paragraph, or as to the reckoning of any service for such an allowance, shall be final.

(6) Any sums payable on account of allowances under this paragraph shall be charged on and paid out of the Consolidated Fund, and shall be paid at such times in every year as the Minister for the Civil Service may determine.

3. In this Part of this Schedule "stipendiary magistrate" means a metropolitan or other stipendiary magistrate in England or Wales, and references to service as a stipendiary magistrate are to be construed accordingly.

PART II

SUPPLEMENTAL LIST FOR ENGLAND AND WALES

4.—(1) Subject to sub-paragraph (6) below there shall be entered in the supplemental list the name of any justice of the peace who is of the age of 70 years or over and neither holds nor has held high judicial office within the meaning of the Appellate Jurisdiction Act 1876 and the name of any justice of the peace who holds or has held such office and is of the age of 75 years or over: 1876 c. 59.

Provided that a person who on the date when his name falls to be entered in the supplemental list in accordance with this sub-paragraph holds office as chairman of the justices in a petty sessions area (whether by election under section 13 of the Justices of the Peace Act 1949 or, in the City of London, as Chief Magistrate or acting Chief Magistrate) shall have his name so entered on the expiration or sooner determination of the term for which he holds office on that date. 1949 c. 101.

(2) The Lord Chancellor may direct that the name of a justice of the peace for any area shall be entered in the supplemental list if the Lord Chancellor is satisfied either—

(a) that by reason of the justice's age or infirmity or other like cause it is expedient he should cease to exercise judicial functions as a justice for the area; or

(b) that the justice declines or neglects to take a proper part in the exercise of those functions.

(3) On a person's appointment as a justice of the peace for any area the Lord Chancellor may direct that his name shall be entered in the supplemental list, if that person is appointed a justice for that area on ceasing to be a justice for some other area.

SCH. 1

(4) The name of a justice of the peace shall be entered in the supplemental list, if he applies for it to be so entered and the application is approved by the Lord Chancellor.

(5) In relation to the entry in the supplemental list of the name of a person who is a justice of the peace only for any of the counties of Greater Manchester, Merseyside and Lancashire, sub-paragraphs (2) to (4) above shall have effect with the substitution for references to the Lord Chancellor of references to the Chancellor of the Duchy of Lancaster.

(6) Nothing in this paragraph shall apply to a person holding office as stipendiary magistrate.

5.—(1) A person's name shall be removed from the supplemental list if he ceases to be a justice of the peace.

(2) The name of any person, if not required to be entered in the supplemental list by paragraph 4(1) above, shall be removed from the list, if so directed by the Lord Chancellor or, where the person in question is a justice only for any of the counties of Greater Manchester, Merseyside and Lancashire, by the Chancellor of the Duchy of Lancaster.

6.—(1) Subject to the following sub-paragraphs, a justice of the peace for any area, while his name is entered in the supplemental list, shall not by reason of being a justice for that area be qualified as a justice to do any act or to be a member of any committee or other body.

(2) Sub-paragraph (1) above shall not preclude a justice from doing all or any of the following acts as a justice, that is to say—

(a) signing any document for the purpose of authenticating another person's signature ;

(b) taking and authenticating by his signature any written declaration not made on oath ; and

(c) giving a certificate of facts within his knowledge or of his opinion as to any matter.

(3) The entry of a person's name in the supplemental list shall also not preclude him, if so authorised by the Lord Chancellor, from acting as a judge of the Crown Court so long as he has not attained the age of 72 years.

(4) No act or appointment shall be invalidated by reason of the disqualification under this paragraph of the person acting or appointed.

7. Any such act as is mentioned in paragraph 6(2)(a) to (c) above, where it may be done by a justice of the peace, may, subject to any express provision made to the contrary by any enactment or instrument relating to that act, be done also by any person who is chairman of the Greater London Council, mayor of a London borough or chairman of a county or district council in England or Wales.

PART III

SCH. 1

TRAVELLING, SUBSISTENCE AND FINANCIAL LOSS ALLOWANCES

8.—(1) Subject to the provisions of this paragraph, a justice of the peace shall be entitled to receive payments at the prescribed rates by way of travelling allowance or subsistence allowance where expenditure on travelling or, as the case may be, on subsistence is necessarily incurred by him for the purpose of enabling him to perform any of his duties as a justice, and to receive payments at the prescribed rate by way of financial loss allowance where for that performance there is incurred by him any other expenditure to which he would not otherwise be subject or there is suffered by him any loss of earnings or of benefit under the National Insurance Acts 1965 to 1967 which he would otherwise have made or received.

(2) For purposes of this paragraph, a justice following a course of instruction under a scheme made in accordance with arrangements approved by the Lord Chancellor, or a course of instruction provided by the Lord Chancellor, shall be deemed to be acting in the performance of his duties as a justice.

(3) A justice shall not be entitled to any payment under this paragraph in respect of any duties, if in respect of those duties a payment of the like nature may be paid to him under arrangements made apart from this paragraph or if regulations provide that this paragraph shall not apply; and a stipendiary magistrate shall not be entitled to any payment under this paragraph in respect of his duties as such.

(4) An allowance payable under this paragraph in respect of duties as a justice in the Crown Court shall be paid by the Lord Chancellor; and an allowance otherwise payable under this paragraph to a justice for any commission area in respect of his duties as such shall be paid by the appropriate authority in relation to that area, that is to say—

- (a) in relation to the City of London, the Common Council;
- (b) in relation to the Inner London area, the Receiver for the metropolitan police district;
- (c) in relation to any of the outer London areas, the Greater London Council;
- (d) in relation to a non-metropolitan county, the county council;
- (e) in relation to a metropolitan county, the council of the metropolitan district which is or includes the petty sessions area for which the justice acts.

(5) Regulations may make provision as to the manner in which this paragraph is to be administered, and in particular—

- (a) for prescribing the rates of allowances, and the forms to be used and the particulars to be provided for the purpose of claiming payment thereof;
- (b) for avoiding duplication between payments under this paragraph and under other arrangements where expenditure is incurred for more than one purpose, and otherwise for preventing abuses.

SCH. 1

(6) Regulations for the purposes of this paragraph shall be made by the Secretary of State by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

PART IV

AMENDMENTS

9.—(1) Subject to any express amendment or repeal made by this Act, any enactment passed or instrument made before the passing of this Act shall have effect from the beginning of April 1974 as if—

(a) any reference to a person appointed justice by a commission of the peace or to a person being removed from a commission of the peace were a reference to his being appointed or removed from office as a justice of the peace in accordance with section 1 of this Act; and

1949 c. 101.

(b) any reference to a supplemental list kept by virtue of section 4 of the Justices of the Peace Act 1949 in connection with the commission of the peace for any area were a reference to the supplemental list for England and Wales kept under section 1 of this Act.

1957 c. 27.

(2) For section 33(2) of the Solicitors Act 1957 (which restricts the right to practise of a solicitor who is a justice of the peace for any area and whose name is not on the supplemental list) there shall be substituted—

“(2) Where a solicitor is a justice of the peace for any area, that shall not subject him or any partner of his to any disqualification under this section if his name is entered in the supplemental list kept under section 1 of the Administration of Justice Act 1973; and where a solicitor is, as being Lord Mayor or alderman, a justice of the peace for the City of London, that shall not subject him or any partner of his to any disqualification under this section, if he is in accordance with section 1(6) of that Act excluded from the exercise of his functions as a justice for the City.”

1829 c. 44.

10.—(1) In section 1 of the Metropolitan Police Act 1829 for the words from “and by warrant” to “those several counties” there shall be substituted the words “and from time to time by warrant under his sign manual to appoint during His Majesty’s pleasure a Commissioner of Police of the Metropolis to execute the duties of chief officer of the police force hereby established”; and any person holding office as Commissioner of Police of the Metropolis at the coming into force of this paragraph shall be deemed to have been appointed under that section as so amended.

1856 c. 2.

(2) Subject to any express amendment or repeal made by this Act, any reference in the Metropolitan Police Act 1829 or in any other enactment passed before the Metropolitan Police Act 1856 to the justices appointed under the Metropolitan Police Act 1829 or to the Commissioners of Police of the Metropolis shall continue to have effect as a reference to the Commissioner of Police of the Metropolis.

11.—(1) In Schedule 1 to the Administration of Justice (Pensions) Act 1950 for the entries relating to metropolitan police magistrates and stipendiary magistrates pensionable under section 33 of the Justices of the Peace Act 1949 there shall, in relation to persons serving as stipendiary magistrates after the coming into force of section 2 of this Act, be substituted—

“ Stipendiary magistrate in England or Wales.	Service as stipendiary magistrate in England or Wales ”.
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(2) In the Pensions (Increase) Act 1971, in Schedule 2, there shall be added at the end of paragraph 13 the words “ or under Part I of Schedule 1 to the Administration of Justice Act 1973 ”.

12. In the Justices of the Peace Act 1949 in section 27 (as amended by section 61 of the Criminal Justice Act 1972) the reference in subsection (2)(b) to section 8 of the Justices of the Peace Act 1949 shall have effect, in relation to payments made after the beginning of April 1974, as a reference to Part III of this Schedule.

SCHEDULE 2

Section 6.

JURISDICTION OF COUNTY COURTS IN RELATION TO LAND

PART I

AMENDMENTS AS TO LIMIT ON JURISDICTION

<i>Act</i>	<i>Amendments</i>	<i>Limit on jurisdiction</i>
The Landlord and Tenant Act 1954 (2 & 3 Eliz. 2. c. 56).	In section 63(2) for the words “ does not exceed £500 ” in paragraph (a) there shall be substituted the words “ is not over the county court limit ”, and for the words “ exceeds £500 ” in paragraph (b) there shall be substituted the words “ is over the county court limit ”.	£5,000.
The County Courts Act 1959 (7 & 8 Eliz. 2. c. 22).	In sections 48(1), 51(a) and (b) and 191(3), and in the entries in Schedule 1 relating to sections 146 and 147 of the Law of Property Act 1925, for the words “ does not exceed £100 ” there shall in each case be substituted the words “ is not above the county court limit ”.	£1,000.

SCH. 2

PART II

RELATED AMENDMENTS

1959 c. 22.

In the County Courts Act 1959—

- (a) in section 49(1) (transfer to High Court of actions for recovery of land) for the words “exceeding £100” there shall be substituted the words “above the county court limit under section 51 of this Act”;
- (b) in section 109(2) (proceedings in which there is an appeal on questions of fact)—
 - (i) in paragraph (a)(iii) for the words “exceeds £60” there shall be substituted the words “is over £500 or such larger sum not exceeding one half of the county court limit under section 51 of this Act as may for the time being be substituted by any Order in Council fixing that limit”; and
 - (ii) in paragraph (b) for the words “exceeding £60” there shall be substituted the words “which is over £500 or such larger sum not exceeding one half of the county court limit under section 48 of this Act as may for the time being be substituted by any Order in Council fixing that limit”;
- (c) in section 200 (construction of references to net annual value for rating), in subsection (2), for the words from “shall” onwards, there shall be substituted—
 - “(a) shall, for the purpose of entitling a county court to exercise jurisdiction (but not for any other purpose), be taken to have a net annual value for rating not exceeding that of any such hereditament of which at the time in question it forms part; and
 - (b) subject to paragraph (a) above, shall be taken to have a net annual value for rating equal to its value by the year.”

Section 10.

SCHEDULE 3

INCREASE OF CERTAIN WIDOW'S AND CHILDREN'S PENSIONS
IN NORTHERN IRELAND

1. The enactments in relation to which section 10 of this Act has effect by virtue of section 10(8) are—

- 1959 c. 25 (N.I.). (a) Part XIII of the County Courts Act (Northern Ireland) 1959 (relating to county court judges and clerks of the Crown and peace), in relation to which the references in section 10 of this Act to section 7(4), section 8 and section 11 (or sections 10 and 11) of the Act of 1950 shall be replaced, respectively, by references to section 126(4) of the County Courts Act (Northern Ireland) 1959, section 127 of that Act and section 13 of the Judicial Pensions Act (Northern Ireland) 1951;
- 1951 c. 20 (N.I.).

- (b) the Resident Magistrates' Pensions Act (Northern Ireland) 1960, in relation to which—
- SCH. 3
1960 c. 2 (N.I.).
- (i) subsection (4)(c) of section 10 of this Act and the reference in subsection (6) to sections 10 and 11 of the Act of 1950 shall not apply ; and
- (ii) the references in section 10 to section 7(4) and section 8 of the Act of 1950 shall be replaced, respectively, by references to section 8(4) and section 9 of the Resident Magistrates' Pensions Act (Northern Ireland) 1960 ;
- (c) Part II of the Judicial Pensions Act (Northern Ireland) 1951 (relating, by virtue of later enactments, to the National Insurance Commissioners, the President of the Industrial Court and the President of the Industrial Tribunals), in relation to which—
- 1951 c. 20 (N.I.).
- (i) subsection (4)(c) of section 10 of this Act and the reference in subsection (6) to sections 10 and 11 of the Act of 1950 shall not apply ; and
- (ii) the references in section 10 to section 7(4) and section 8 of the Act of 1950 shall be replaced, respectively, by references to section 10(4) and section 11 of the Judicial Pensions Act (Northern Ireland) 1951.
2. In relation to the provisions to which section 10 of this Act applies by virtue of paragraph 1(a) or of paragraph 1(b) above references in section 10 to relevant service shall have effect as references to service within the meaning of those provisions.
3. In relation to any of the provisions to which section 10 of this Act applies by virtue of paragraph 1 above, the expression "enactment" in section 10(6) shall mean enactment of the Parliament of Northern Ireland or amendable by Act of that Parliament ; and section 10(7) shall not apply, but regulations for purposes of section 10 may be made with the consent of the Ministry of Finance for Northern Ireland by the Ministry of Home Affairs for Northern Ireland or, in relation to the Judicial Pensions Act (Northern Ireland) 1951, the Ministry of Health and Social Services for Northern Ireland, and shall be subject to negative resolution within the meaning of section 41(6) of the Interpretation Act (Northern Ireland) 1954 as if they were a statutory instrument within the meaning of that Act.
- 1954 c. 33 (N.I.).

SCHEDULE 4

Sections 11 and
19.

PENSIONS OF HIGHER JUDICIARY

1.—(1) Any Lord of Appeal in Ordinary, any Judge of the Supreme Court in England and Wales other than the Lord Chancellor, and any Judge of the Supreme Court in Northern Ireland, on retirement from that office shall be entitled during his life to a pension at the annual rate provided by this Schedule, if he retires after fifteen years relevant service or after he has attained the age of seventy years, or if at the time of his retirement he is disabled by permanent infirmity from the performance of the duties of his office.

(2) A pension payable under this Schedule shall be charged on and paid out of the Consolidated Fund of the United Kingdom.

SCH. 4

2.—(1) Subject to paragraph 4 below, the annual rate of the pension payable under this Schedule to a person retiring from any office after fifteen or more years relevant service shall be one half of his last annual salary.

(2) Subject as aforesaid, the annual rate of the pension payable under this Schedule to a person retiring from any office after less than fifteen years relevant service shall be as follows, that is to say—

- (a) if the period of relevant service does not amount to six years or more, one quarter of his last annual salary;
- (b) if the period amounts to six years or more, one quarter of that salary plus one fortieth of that salary for each completed year of service exceeding five.

1971 c. 56.

(3) This paragraph shall be without prejudice to the operation of the Pensions (Increase) Act 1971.

1950 c. 11

(14 & 15 Geo. 6).

(4) In relation to any person in whose case an election is in force under section 11(1) of the Administration of Justice (Pensions) Act 1950 (which enabled persons serving at the commencement of that Act to opt out of the provisions of that Act for the grant of lump sums and widow's and children's pensions) this paragraph shall have effect as if for any reference to his last annual salary there were substituted a reference to the amount of that salary increased by one third.

3. The relevant service for purposes of this Schedule is—

- (a) in relation to the pension of a Lord of Appeal in Ordinary, any service as Lord of Appeal in Ordinary, as Judge of the Supreme Court in England and Wales, as Judge of the Court of Session or as Judge of the Supreme Court in Northern Ireland; and
- (b) in relation to the pension of a Judge of the Supreme Court in England and Wales, any service as a judge of that Court or as Lord of Appeal in Ordinary; and
- (c) in relation to the pension of a Judge of the Supreme Court in Northern Ireland, any service as a judge of that Court or as Lord of Appeal in Ordinary.

1959 c. 9

(8 & 9 Eliz. 2).

4.—(1) Neither this Schedule nor any repeal made by Part V of Schedule 5 to this Act shall affect the rate or amount of any pension or benefit payable to or in respect of a person who retired or died before the 17th December 1959 (being the date of commencement of the Judicial Pensions Act 1959) or who at that time held any of the offices mentioned in paragraph 3 above and did not elect that sections 1 and 2 of that Act should apply to him.

(2) This Schedule shall have effect subject to the provisions of sections 4 and 6 of the Judicial Pensions Act 1959 (which allow for a special rate of pension in certain cases and make provision against double pensions); but in that Act "the relevant pension enactments" in relation to pensions payable in respect of the offices

mentioned in paragraph 1 above shall mean this Schedule, and in section 4(2) of that Act for the words "by virtue of subsection (2) of section 2 of this Act" there shall be substituted the words "by retirement after attaining the age of seventy years".

SCH. 4

(3) Subject to sub-paragraph (1) above, the Pensions (Increase) 1971 c. 56. Act 1971 shall have effect as if in Schedule 2 there were substituted for paragraph 5—

"5. A pension payable under Schedule 4 to the Administration of Justice Act 1973 or under the Judges' Pensions (Scotland) 1808 c. 145. Act 1808".

Sections 19, 20
and 21.

SCHEDULE 5

REPEALS

PART I

OBSOLETE ETC. ENACTMENTS

Chapter	Short Title	Extent of Repeal
45 & 46 Vict. c. 50.	The Municipal Corporations Act 1882.	In section 7, in subsection (1), the definitions of "corporate seal", "parliamentary election", "county" and "borough civil court", and subsection (3). Section 31. Section 231. Section 237. Section 241. Section 242(2). In section 255, the words from "the authority" to "Kingdom or". In Schedule 9, the entry in Part II relating to the Criminal Justice Administration Act 1851.
7 & 8 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	In section 11(1), in the proviso inserted by the Supreme Court of Judicature (Amendment) Act 1944, the words from "except" to "twenty-five".
7 & 8 Geo. 6. c. 9.	The Supreme Court of Judicature (Amendment) Act 1944.	Section 1(2), (3), (4) and (6), and in section 1(5) the words from the beginning down to "this section". In the Schedule, in the last entry in column 2, the words from "except" to "twenty-five".
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act 1949.	Section 6. In section 15, in subsection (5), the words "after the establishment of the rule committee". Section 37(1) from "and" onwards. In section 44(1), the definition of "justices clerk" from "and" onwards. Schedule 2 (but without prejudice to any continuing effect of provisions relating to a person's office or employment or to superannuation in respect of an office or employment).

SCH. 5

Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 39.	The Common Informers Act 1951.	In the Schedule, the entry for the Justices' Clerks Act 1877.
1964 c. 42.	The Administration of Justice Act 1964.	Section 25.
1968 c. 69.	The Justices of the Peace Act 1968.	In section 1, subsection (3) from "and in" onwards, and subsection (7) from "but" onwards. In section 7, in subsection (2) the words from "and in particular" to "is to act" and subsection (3) (but without prejudice to any Order in Council made before the coming into force of this repeal). In section 8, subsection (2) and in subsection (3) the words from the first "except" onwards. In Schedule 3, paragraph 2(1) from "and section 1(4)" onwards, paragraph 9 and paragraph 10(1). Schedule 5.

PART II

JUSTICES OF THE PEACE

Chapter	Short Title	Extent of Repeal
10 Geo. 4. c. 44.	The Metropolitan Police Act 1829.	Section 1 from "and His Majesty may remove" onwards. Section 2.
2 & 3 Vict. c. 47.	The Metropolitan Police Act 1839.	Section 4.
19 & 20 Vict. c. 2.	The Metropolitan Police Act 1856.	The preamble. Section 1. Section 2 from "and every" onwards. Section 5.
40 & 41 Vict. c. 41.	The Crown Office Act 1877.	In section 3, proviso (2) from "in particular" onwards. In section 5, paragraph (1).

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Chapter	Short Title	Extent of Repeal
45 & 46 Vict. c. 50.	The Municipal Corporations Act 1882.	Sections 105, 154, 156, 157, 158, 159(3) to (5), 187, 234, 250(4) and (5) and 258. In Schedule 5, paragraph 3 of Part II from "including" onwards.
6 Edw. 7. c. 16.	The Justices of the Peace Act 1906.	The whole Act so far as unrepealed.
5 & 6 Geo. 5. c. 74.	The Police Magistrates Superannuation Act 1915.	The whole Act.
19 & 20 Geo. 5. c. 37.	The Police Magistrates Superannuation (Amendment) Act 1929.	The whole Act.
12, 13 & 14 Geo. 6. c. 101.	The Justices of the Peace Act 1949.	In section 1, in subsections (1), (2) and (3) the words " by the commission of the peace". Section 4. Section 8. Section 10. Sections 29, 32, 33 and 34. Section 43(2) and (3)(b). In section 44(1), in the definition of "magistrate" the words from "kept" to the following "commission", the definition of "metropolitan stipendiary magistrate" and the two following definitions, and the definition of "stipendiary magistrate".
14 & 15 Geo. 6. c. 11.	The Administration of Justice (Pensions) Act 1950.	Section 1, so far as relates to pensions for service as stipendiary magistrate in England or Wales. Section 14. Schedule 2, except the entry for the County Courts Act 1924. In Schedule 3 paragraphs 5 and 6.
14 & 15 Geo. 6. c. 39.	The Common Informers Act 1951.	In the Schedule, the entry for the Municipal Corporations Act 1882, except as respects offences committed before the coming into force of this repeal.
15 & 16 Geo. 6 & 1 Eliz. 2. c. 12.	The Judicial Offices (Salaries, etc.) Act 1952.	Section 1(4).
4 & 5 Eliz. 2. c. 34.	The Criminal Justice Administration Act 1956.	The whole Act, so far as unrepealed.
9 & 10 Eliz. 2. c. 3.	The Administration of Justice (Judges and Pensions) Act 1960.	Section 2.

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Chapter	Short Title	Extent of Repeal
1964 c. 42.	The Administration of Justice Act 1964.	In section 2, in subsection (1), the words from "there shall" to "each of" and the words following paragraph (e); in subsection (2) the words from the beginning to "section" and the words "of that subsection"; and subsection (4). In section 3, the words "in subsection (1) of" and the words "under the said subsection (1)". Section 10(1), from "but" onwards. In section 31(1), the words "section 8 of", the words from "(travelling)" to "peace" and ", the words "of that Act" and in paragraph (b) the words "of each of those sections". In Schedule 3, paragraph 6, paragraph 7 and paragraph 20(1) and (8). Section 3(4)(a)(iv).
1967 c. 28.	The Superannuation (Miscellaneous Provisions) Act 1967.	
1968 c. 69.	The Justices of the Peace Act 1968.	In section 1, subsection (1); in subsection (2) the words from "notwithstanding" to "itself, and", and in paragraph (a) the words from "by virtue" to "respectively"; and subsections (4), (5), (6) and (8). Section 2. Section 4(1) to (4), but without prejudice to subsection (5). Schedule 1. In Schedule 2, in paragraph 1 the words "by the commission of the peace" and the words "by the commission"; paragraph 3 from the beginning to "and accordingly"; and paragraph 4 from "but" onwards. In Schedule 3, Part II. Schedule 4.
1972 c. 70.	The Local Government Act 1972.	In section 217, subsection (1) from the beginning to "county and", subsections (4) and (6), and in subsection (7) the words from "and to transfer" to "Crown Court". In Schedule 27, paragraphs 2, 3, 4 and 11.

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PART III

COUNTY COURT JURISDICTION

Chapter	Short Title	Extent of Repeal
7 & 8 Eliz. 2. c. 22.	The County Courts Act 1959.	In section 192(2) (as substituted by the Administration of Justice Act 1969) paragraph (a) from "except" onwards.
1963 c. 5.	The County Courts (Jurisdiction) Act 1963.	The whole Act.
1969 c. 58.	The Administration of Justice Act 1969.	In section 10(2), in section 192(2) of the County Courts Act 1959 as there set out, paragraph (a) from "except" onwards.

PART IV

JUDICIAL SALARIES

Chapter	Short Title	Extent of Repeal
5 & 6 Eliz. 2. c. 46.	The Judicial Offices (Salaries and Pensions) Act 1957.	The whole Act.
1965 c. 61.	The Judges' Remuneration Act 1965.	The whole Act.
1967 c. 28.	The Superannuation (Miscellaneous Provisions) Act 1967.	Section 3(4)(a)(i).
1970 c. 31.	The Administration of Justice Act 1970.	In Schedule 2, paragraph 25.

PART V

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JUDICIAL PENSIONS

Chapter	Short Title	Extent of Repeal
39 & 40 Vict. c. 59.	The Appellate Jurisdiction Act 1876.	Section 7.
40 & 41 Vict. c. 57.	The Supreme Court of Judicature Act (Ireland) 1877.	Sections 19 and 20.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	Sections 14 and 15.
15 & 16 Geo. 6 and 1 Eliz. 2. c. 12.	The Judicial Offices (Salaries, etc.) Act 1952.	Section 5(1)(a) and (c).
8 & 9 Eliz. 2. c. 9.	The Judicial Pensions Act 1959.	Section 1, except as regards pensions payable under the Judges' Pensions (Scotland) Act 1808. Section 2(2) except as aforesaid. In Schedule 1 the entries in column 2, except that for the Judges' Pensions (Scotland) Act 1808. Schedule 2, except the entry for the Judges' Pensions (Scotland) Act 1808.

PART VI

DEPUTY DISTRICT AND COUNTY COURT REGISTRARS

Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act 1925.	In section 84, subsection (4), in subsection (5) the words "and provisional district registrar", subsection (6) and in subsection (7) the words "and provisional district registrar" and the words "or the provisional district registrar".
4 & 5 Eliz. 2. c. 46.	The Administration of Justice Act 1956.	In section 11, subsection (1) from "but" onwards and subsections (2) to (7).
7 & 8 Eliz. 2. c. 22.	The County Courts Act 1959.	Section 27. In section 29, the subsection (1A) inserted by the Administration of Justice Act 1970.
1970 c. 31.	The Administration of Justice Act 1970.	Section 46.